

25STCV19712 25STCV19712

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 25STCV19712 Hearing Date: August 7, 2026 Dept: 224

Akopyan v. County of Los Angeles

TENTATIVE RULING

The motion is GRANTED.

This action is stayed for six months from the date of this order. A status conference is set for March 2, 2027 at 8:30 a.m. in Department 224, at which time the parties shall be prepared to report on the status of the writ proceeding and to address whether the stay should be continued, modified, or lifted.

The parties shall file a joint status report no later than five court days before the conference.

ANALYSIS

Introduction

On July 2, 2025, Plaintiff filed the Complaint in this action, alleging a single cause of action for retaliation in violation of Labor Code section 1102.5.

On September 5, 2025, Plaintiff filed a Verified Petition for Writ of Mandate (Case No. 25STCP03487).

On February 13, 2026, Defendant County of Los Angeles filed the instant Motion to Stay Civil Proceedings Pending the Exhaustion of Administrative Remedies.

On July 28, 2026, Plaintiff filed an Opposition.

On July 30, 2026, Defendant filed a Reply.

Legal Standard

Any party may file a motion for an order under Code of Civil Procedure section 404.5 staying the proceedings in any action being considered for, or affecting an action being considered for, coordination, or the court may stay the proceedings on its own motion. The motion for a stay may be included with a petition for coordination or may be served and submitted to the Chair of the Judicial Council and the coordination motion judge by any party at any time prior to the determination of the petition. (Cal. Rules of Court, rule 3.515, subd. (a).)

Code of Civil Procedure section 404.5 provides that, "[p]ending any determination of whether coordination is appropriate, the judge making that determination may stay any action being considered for, or affecting an action being considered for, coordination." (Code Civ. Proc., § 404.5.)

"Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

Discussion

As an initial matter, Defendant brings the motion under Code of Civil Procedure section 404.5. However, that statute does not apply here. No petition for coordination under section 404 has been submitted, no coordination motion judge has been assigned, and this action is not "being considered for" coordination within the meaning of the statute. Section 404.5 therefore furnishes no authority for the relief requested.

The exhaustion of remedies doctrine – for which the motion is expressly titled – likewise does not authorize the requested stay. Exhaustion is a jurisdictional prerequisite to suit, not a case-management device. Where the doctrine applies and administrative remedies have not been exhausted, the court is without jurisdiction to entertain the action. (Abelleira v. District Court of Appeal (1941) 17 Cal.2d 280, 293; accord Campbell v. Regents of University of California (2005) 35 Cal.4th 311, 321 [exhaustion is "a jurisdictional prerequisite to resort to the courts"].) The doctrine thus points to dismissal, not delay. Exhaustion does not support a temporary stay in this circumstance.

Because neither section 404.5 nor the exhaustion doctrine authorizes the requested stay, the sole basis on which the Court may grant it is the Court's inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) The Court considers the motion pursuant to its inherent authority.

First, the writ proceeding and this action arise from a single underlying event – Plaintiff's July 1, 2024 reassignment – and turn on substantially overlapping factual questions concerning the propriety of that reassignment. Allowing both matters to proceed in parallel would require duplicative discovery on the same facts and risk inconsistent determinations on the core question of whether the reassignment was a legitimate exercise of the County's authority. A stay conserves judicial and party resources and avoids that risk.

Second, the writ proceeding is procedurally further along. A trial setting conference is set there for March 2, 2026, and the related petitions are the subject of consolidation discussions before the court handling those matters. By contrast, this action has no trial date and no discovery has commenced. Resolution of the writ may narrow or, depending on its outcome, dispose of issues in this action, such that awaiting that resolution promotes orderly and efficient adjudication.

Third, the prejudice to Plaintiff from a temporary stay is minimal. The evidence and witnesses relevant to the reassignment are common to both proceedings, so the stay creates little risk of lost evidence or faded recollection. Because this action is in its earliest stages, a six-month stay imposes limited delay, and Plaintiff retains the ability to prosecute his retaliation claim after the stay is lifted. Plaintiff is himself actively litigating the related writ.

The Court notes that the Commission denied a hearing on timeliness rather than reaching the merits of the reassignment, so the extent to which the writ proceeding will produce a merits determination with preclusive effect on this action cannot be determined at this stage. That contingency does not defeat the stay, as the overlap in facts, the advanced position of the writ, and the conservation of resources independently support a temporary stay.

Conclusion

The motion is GRANTED.

This action is stayed for six months from the date of this order. A status conference is set for March 2, 2027 at 8:30 a.m. in Department 224, at which time the parties shall be prepared to report on the status of the writ proceeding and to address whether the stay should be continued, modified, or lifted.

The parties shall file a joint status report no later than five court days before the conference.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.